

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: September 10, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Alpha-O Peptides AG vs. Regents of the University of California 2024-01381470	Motion to File an Undertaking Defendants Regents of the University of California – Irvine and Lbachir Benmohamed, PhD’s Motion to Require Plaintiffs Alpha-O Peptides AG and Peter Burkhard, PhD to provide an undertaking pursuant to Code Civ. Proc. §1030 is DENIED. Defendants Sunomix Therapeutics and Mohammed Bouziane, PhD’s Joinder in Moving Defendants’ motion is DENIED. “When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney's fees which may be awarded in the action or special proceeding. For the purposes of this section, ‘attorney’s fees’ means reasonable attorney’s fees a party may be authorized to recover by a statute apart from this section or by contract.” (Code Civ. Proc., § 1030, subd. (a).) The motion must be supported by points and authorities and affidavits showing: (1) plaintiff’s nonresidency; (2) a “reasonable possibility” defendant will obtain judgment in the action; and (3) the nature and amount of costs and attorney fees defendant has incurred and expects to incur in the action. (Code Civ. Proc., § 1030, subd. (b).) To obtain an order requiring such bond, defendant must show a “reasonable possibility” that it will prevail at trial, and a detailed estimate of the costs it is likely to incur. (Code Civ. Proc. § 1030 subd. (a), (b).) Here, the court need not address the issues of Plaintiff’s residency and whether Defendants have established a reasonable possibility of prevailing against Plaintiff’s claims because neither Moving Defendants nor Joining Defendants have set forth a sufficient estimate of costs and fees. Code of Civil Procedure section 1030 defines attorney’s fees as “reasonable attorney's fees a party may be authorized to recover by a statute apart from this section or by contract.” (Code of Civ. Proc., § 1030, subd. (a).) The bulk of the requested undertaking consists of anticipated attorneys’ fees. Code of Civil Procedure section 1030 makes it clear that an independent basis for recovery of fees is required. Section 1030 itself does not provide a basis for recovery. Moving Defendants point to Code of Civil Procedure section 128.5

		as a basis for fee recovery but this section contemplates an award of fees as sanctions, rather than as a matter of costs, so it does not provide a valid basis for including a fee award in a section 1030 undertaking. Moving Defendants also point to Civil Code section 3426.4, which allows recovery of fees as costs by a prevailing party “if a claim of misappropriation is made in bad faith...” For the purposes of section 3426.4, to establish a claim is made in bad faith, there must be a showing of “ (1) objective speciousness of the claim, and (2) subjective bad faith in bringing or maintaining the action, i.e., for an improper purpose.” (<i>Cypress Semiconductor Corp. v. Maxim Integrated Products, Inc.</i> (2015) 236 Cal.App.4th 243, 260.) There is no evidence to support a finding that Plaintiff’s trade secret causes of action are brought in bad faith. Moving Defendants also seek to assert that they will incur \$55,000 in costs defending this action. Moving Defendants’ declaration, however, contains nothing more than assertions of this \$55,000 figure without any factual support. Merely listing estimated categories of costs does not set forth “the nature and amount of the costs and attorney's fees the defendant has incurred and expects to incur.” (Code Civ. Proc., §1030, subd. (b).) Plaintiff shall provide notice of this ruling.
2	Atiyeh vs. Zhu 2026-01573491	Motion – Other <i>Vacated. See minute order dated 9/8/26.</i>
3	Incentax, LLC vs. Allied West Paper Corporation 2025-01485830	Motion for Summary Judgment and/or Adjudication No tentative.
4	Kiani vs. Masimo Corporation 2024-01426785	Off calendar. <i>Vacated. See minute order dated 8/28/26.</i>
5	Kim vs. Hong 2025-01533601	Demurrer to Amended Complaint All parties and counsel are admonished that the meet and confer efforts with respect to this demurrer do not comply with California Code of Civil Procedure section 430.41, subdivision (a). Parties “shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to

		demurrer.” The court notes that moving-party’s attorney’s 3-19-26 meet and confer letter only demands dismissal or payment of monetary sanctions but does not invite plaintiff to discuss the deficiencies “in person, by telephone, or by video conference.” (See exhibits to ROA 41.) Had moving-party done so, then a declaration attesting to plaintiff’s failure to respond would comply with Code of Civil Procedure section 430.41, subdivision (a)(3)(B) [“That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith”].) Moving-party’s meet and confer letter alone is insufficient. Despite the insufficient meet and confer efforts, the court addresses the merits of the demurrer. Defendant Wan P. Hong aka John Hong’s demurrer to plaintiff Jay W. Kim’s First Amended Complaint [FAC] is SUSTAINED, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Defendant’s demurrer to plaintiff’s original Complaint was sustained with leave to amend, because the originally pled fraud claim was time-barred, and the original Complaint failed to sufficiently allege delayed discovery. (See ROA 1 [original Complaint], ROA 22 [2-22-26 minute order].) Rather than redrafting the entire Complaint to incorporate plaintiff’s prior fraud claim with allegations of delayed discovery in a single new pleading, plaintiff’s FAC only addresses delayed discovery, but does not allege the fraud claim alleged in the original Complaint [i.e. misrepresentation of ability to repair plaintiff’s mold]. As currently pled, the FAC only alleges defendant offered fraudulent and/or perjurious testimony in a 2020 small claims action. (FAC, second page.) This is insufficient to state a fraud claim on its own, as there are no allegations as to the substance of the alleged false testimony, that plaintiff relied on any false testimony to his detriment, or any resulting damages therefrom. (See <i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 [elements of fraud cause of action are: (1) a misrepresentation by defendant; (2) defendant’s knowledge of its falsity; (3) intent to defraud; (4) plaintiff’s justifiable reliance; and (5) resulting damages]; see also <i>id.</i> at 645 [fraud claims must be pled with particularity, including facts showing “how, when, where, to whom and by what means the representations were tendered”].)
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6	Maaranu vs. Ponder 2025-01505635	Demurrer to Amended Complaint (2) <i>Vacated. See minute order dated 9/8/26.</i>

7	McColgan vs. Mazda Motor of America, Inc. 2025-01495373	Motion for an order for Non-Resident Plaintiff to file an undertaking Defendant Mazda Motor of America, Inc.’s motion to require nonresident plaintiff Kyle McColgan to provide an undertaking is DENIED. (Code Civ. Proc., § 1030 [authorizing requested relief].) Moving party has not shown a “reasonable possibility” that it will prevail in this action. (Code Civ. Proc., § 1030, subd. (b).) As to plaintiff’s 1st cause of action for violation of the California Invasion of Privacy Act [CIPA], Cal. Penal Code § 637.7, moving party relies on federal district court opinions, one of which is unpublished, which are not binding. (Cal. Rules of Court, Rule 8.1115 [unpublished cases not citable, with limited exceptions not applicable here]; <i>United Firefighters of Los Angeles City v. City of Los Angeles</i> (1989) 210 Cal.App.3d 1095, 1115 [“a decision of a federal district court has no precedential value ... at best, it is persuasive authority only”].) Further, moving party does not provide evidence that data collection did not occur in California, as alleged by plaintiff. Moreover, moving party does not address plaintiff’s common law invasion of privacy claim, nor show how it has a reasonable probability of prevailing there. The court also notes that Code of Civil Procedure section 995.240 states: The court may, in its discretion, waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because the principal is indigent and is unable to obtain sufficient sureties, whether personal or admitted surety insurers. In exercising its discretion the court shall take into consideration all factors it deems relevant, including but not limited to the character of the action or proceeding, the nature of the beneficiary, whether public or private, and the potential harm to the beneficiary if the provision for the bond is waived. Plaintiff has previously obtained a fee waiver (ROA 8), and his supporting declaration sufficiently shows that his financial situation has not changed significantly, so as to justify review of his fee waiver status, or that he has any other significant assets to support issuance of bond. (McColgan Decl., ¶¶ 4-8; Code Civ. Proc., § 995.240 [waiver of bond requirement due to indigency]; <i>Baltayan v. Estate of Getemyan</i> (2001) 90 Cal.App.4th 1427, 1433–1434 [trial court’s refusal to vacate its order requiring an
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		undertaking or reduce the amount of the undertaking of an indigent plaintiff was an abuse of discretion.].) So even if moving-party could show a reasonable probability of prevailing at trial, the court in its discretion may still not require an undertaking. Plaintiff shall give notice.
8	Xirinachs vs. Tallman 2026-01565134	Demurrer to Complaint <i>Continued. See minute order dated 9/8/26.</i>